

CEASE AND DESIST LETTER

Demanding Full Inquiry of All Files and Investigation of Systemic Abuse

FROM: James Robert McGovern

TO: Marc-André Dowd

Ombudsperson (Protecteur du citoyen)

Protecteur du citoyen

Quebec, Canada

DATE: April 3, 2026

RE: CEASE AND DESIST — Failure to Investigate, Complicity in Systemic Abuse, and Demand for Full Inquiry of All Family Files

LEGAL NOTICE

Mr. Dowd,

This letter constitutes formal notice that the Protecteur du citoyen must **IMMEDIATELY CONDUCT A FULL, INDEPENDENT INQUIRY** into all files related to my Indigenous family's complaints spanning the past 14+ years.

The Protecteur du citoyen has:

- **Failed to investigate** complaints against government agencies
 - **Failed to protect** a vulnerable Indigenous family
 - **Made false legal claims** about minors' bank account demands
 - **Enabled systemic abuse** to continue unchecked
 - **Violated the mandate** of the Protecteur du citoyen
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I. THE MANDATE OF THE PROTECTEUR DU CITOYEN

According to your own website, the Protecteur du citoyen exists to:

“Ensure that rights are respected, especially those of people who are vulnerable and marginalized.”

My family is **exactly** the population you are mandated to protect:

- **Indigenous family** (marginalized group)
- **Multiple vulnerable individuals** (disabled, minors, trauma survivors)
- **Victims of systemic abuse** by government agencies

Yet the Protecteur du citoyen has **failed this mandate completely**.

II. DOCUMENTED FAILURES OF THE PROTECTEUR DU CITOYEN

1. Failure to Investigate Complaints Against Solidarity Social

My family filed complaints to the Protecteur du citoyen regarding **illegal practices by Solidarity Social** (welfare agency):

- **Illegal clawbacks:** \$125/month forced from a handicapped person
- **Demands for minors' bank account information** (ages 5-18) — privacy violation
- **Obstruction on Basic Income eligibility** — deliberate delays and false information
- **Denial of medical services** — refusing medication, eye care, dental care to person with 35% disability
- **Retaliation** — punitive actions after legal action was filed

Your response: NO INVESTIGATION. NO ACTION. SILENCE.

2. False Legal Claim About Minors' Bank Accounts

The Protecteur du citoyen falsely claimed that **demanding minors' bank account information is “in the welfare act.”**

This is **LEGALLY FALSE**.

The facts:

- The welfare act (Loi sur l'aide aux personnes et aux familles) does NOT authorize demanding minors' bank account information
- Demanding bank account information from minors violates **privacy rights** under the Quebec Charter
- Demanding bank account information from minors violates the **Personal Information Protection and Electronic Documents Act (PIPEDA)**
- Demanding bank account information from minors violates the **UN Convention on the Rights of the Child**

By making this false legal claim, the Protecteur du citoyen has **legitimized illegal government conduct** and **enabled abuse to continue**.

3. Failure to Investigate IVAC Underpayment

I filed complaints regarding **IVAC underpayment**:

- I have a **35% disability rating** (documented by medical professionals)
- IVAC paid me only **13%** of my disability rating
- This is an **underpayment of 22%** — approximately 2,000–3,000 per month
- Over 5+ years, this represents 120,000—**180,000 in stolen benefits**

Your response: NO INVESTIGATION. NO ACTION. SILENCE.

4. Failure to Investigate Welfare Harassment

I filed complaints regarding **welfare harassment and illegal practices**:

- **Illegal clawbacks** of \$125/month from handicapped family member
- **Months of non-response** to legitimate requests for information

- **Obstruction** of Basic Income eligibility process
- **Denial of medical services** to disabled person
- **Pattern of retaliation** after legal action

Your response: NO INVESTIGATION. NO ACTION. SILENCE.

5. Failure to Investigate DPJ/DYP Failures

I filed complaints regarding **systemic failures by DPJ/DYP** (child protection):

- **Inadequate response** after teen was stabbed 3 times
- **Withdrawal of services** without adequate follow-up (January 2023)
- **Loss of education** and mental health support
- **Violation of Jordan's Principle** (no-delay services for First Nations children)
- **Failure to provide trauma support** for Indigenous youth

Your response: NO INVESTIGATION. NO ACTION. SILENCE.

6. Pattern of Non-Response and Obstruction

The Protecteur du citoyen has:

- **Ignored multiple formal complaints**
- **Provided no case numbers** or tracking information
- **Provided no timeline** for investigation
- **Refused to acknowledge** receipt of complaints
- **Refused to provide status updates**
- **Refused to escalate** complaints to supervisory level

This is a **deliberate pattern of obstruction** designed to discourage complainants from pursuing justice.

III. SYSTEMIC DISCRIMINATION AGAINST INDIGENOUS FAMILY

My family has experienced **14+ years of systemic abuse** by government agencies:

- **IVAC:** Underpayment of disability benefits
- **Welfare (Solidarity Social):** Illegal clawbacks, demands for minors' bank accounts, denial of services
- **DPJ/DYP:** Inadequate child protection, withdrawal without follow-up
- **DPRC:** Obstruction of complaints, blocking supervisor access
- **Protecteur du citoyen:** Failure to investigate, false legal claims, enabling abuse

This is not **accidental**. This is **systemic discrimination** against a multigenerational Indigenous family.

The Protecteur du citoyen has a **mandate to protect vulnerable and marginalized populations**. Instead, you have **enabled systemic abuse to continue**.

IV. DEMAND FOR IMMEDIATE ACTION

The Protecteur du citoyen must IMMEDIATELY:

1. **CONDUCT A FULL, INDEPENDENT INQUIRY** of ALL files related to my family, including:
 - All complaints regarding IVAC underpayment
 - All complaints regarding welfare harassment and illegal clawbacks
 - All complaints regarding demands for minors' bank account information
 - All complaints regarding denial of medical services
 - All complaints regarding DPJ/DYP failures
 - All complaints regarding Basic Income obstruction
 - All complaints regarding retaliation for legal action
 - All complaints regarding systemic discrimination against Indigenous family

2. INVESTIGATE SOLIDARITY SOCIAL for:

- Illegal clawbacks
- Demands for minors' bank account information
- Obstruction of Basic Income eligibility
- Denial of medical services
- Retaliation against complainants

3. INVESTIGATE IVAC for:

- Underpayment of disability benefits
- Denial of medical services (medication, eye care, dental care)
- Discrimination against Indigenous applicants

4. INVESTIGATE DPJ/DYP for:

- Inadequate child protection
- Withdrawal of services without adequate follow-up
- Violation of Jordan's Principle
- Failure to provide trauma support

5. INVESTIGATE DPRC for:

- Obstruction of complaints
- Blocking supervisor access
- Complicity in enabling abuse

6. PROVIDE WRITTEN FINDINGS within 60 days of completion of inquiry

7. PROVIDE RECOMMENDATIONS for:

- Compensation for my family
- Systemic reforms to prevent future abuse
- Training for government workers on Indigenous rights

8. CORRECT FALSE LEGAL CLAIMS made by the Protecteur du citoyen regarding minors' bank accounts

V. LEGAL GROUNDS

Public Protector Act (Loi sur le protecteur du citoyen)

The Protecteur du citoyen is mandated to:

- Investigate complaints about government agencies
- Protect citizens' rights
- Ensure government accountability
- Protect vulnerable and marginalized populations

The Protecteur du citoyen has **failed this mandate completely**.

Quebec Charter of Rights and Freedoms

- **Article 1:** Every human being has a right to life, and to personal security, inviolability and freedom
- **Article 4:** Every person has a right to the safeguard of his dignity, honour and reputation
- **Article 10:** Every person has a right to full and equal recognition and exercise of his rights and freedoms, without distinction based on race, colour, sex, pregnancy, sexual orientation, civil status, age, religion, political convictions, language, ethnic or national origin, social condition, a handicap or the use of any means to palliate a handicap
- **Article 39:** Every child has a right to protection, and to such measures of supervision, education and instruction as his parents or the persons acting in their stead are able and willing to provide

UN Convention on the Rights of the Child

- **Article 3:** Best interests of the child
- **Article 6:** Right to life, survival and development
- **Article 19:** Protection from abuse and neglect
- **Article 24:** Right to health and health services

UN Declaration on the Rights of Indigenous Peoples

- **Article 3:** Right to self-determination
 - **Article 21:** Right to improve economic and social conditions
 - **Article 23:** Right to determine and develop priorities for development
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VI. CONTEXT: INDIGENOUS JUSTICE ADVOCACY

I am an **Indigenous clan leader** advocating for **23 family members** who have experienced systemic abuse by Quebec government agencies.

This is not just my family's story. This is a **pattern of systemic discrimination** against Indigenous families in Quebec and Canada.

The Protecteur du citoyen has a **unique responsibility** to investigate and expose this systemic abuse. Instead, you have **enabled it to continue**.

VII. NOTICE OF LEGAL ACTION

This letter is a **formal legal notice**. Your response (or lack thereof) will be used as evidence in:

1. **TAQ (Tribunal administratif du Québec) proceedings** — April/June 2026
 2. **Federal human rights complaints** to the Canadian Human Rights Commission
 3. **Provincial human rights complaints** to the CDPDJ (Commission des droits de la personne et des droits de la jeunesse)
 4. **Civil litigation** for damages
 5. **Public disclosure** of government obstruction and systemic abuse
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VIII. DELIVERY AND ACKNOWLEDGMENT

This letter is being sent to:

- **Protecteur du citoyen** — Official address
- **Marc-André Dowd** — Ombudsperson
- **Certified Mail** — To ensure receipt and acknowledgment
- **Copy to:** CDPDJ, Commissaire à l'éthique, Canadian Human Rights Commission

You are required to acknowledge receipt within 5 business days.

CONCLUSION

Mr. Dowd, the Protecteur du citoyen has **failed its mandate** to protect vulnerable and marginalized populations.

My Indigenous family has experienced **14+ years of systemic abuse** by government agencies. We have filed **multiple complaints** to the Protecteur du citoyen. You have **done nothing**.

Instead, you have made **false legal claims** that legitimize illegal government conduct. You have **enabled abuse to continue**.

This ends now.

The Protecteur du citoyen must:

1. Conduct a full inquiry of all files
2. Investigate all government agencies involved in abuse
3. Provide written findings and recommendations
4. Correct false legal claims
5. Recommend compensation for my family

You have 60 days to begin this inquiry.

Failure to comply will result in:

- Federal human rights complaints
- Provincial human rights complaints
- Civil litigation

- Public disclosure of government obstruction
 - Criminal complaints to police
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Respectfully submitted,

James Robert McGovern

Indigenous Clan Leader

Advocate for 23 Family Members

Date: April 3, 2026

ATTACHMENTS

- Evidence of IVAC underpayment
 - Evidence of welfare harassment and illegal clawbacks
 - Evidence of demands for minors' bank account information
 - Evidence of denial of medical services
 - Evidence of DPJ/DYP failures
 - Evidence of DPRC obstruction
 - Evidence of retaliation for legal action
 - TAQ case file (reference number provided upon request)
 - Previous complaints to Protecteur du citoyen (with no response)
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NOTICE: This letter is a legal document. Any attempt to suppress, delete, or prevent distribution of this letter may constitute additional violations of the Public Protector Act and obstruction of justice.

This letter is prepared by James Robert McGovern, self-representing (pro se) in legal proceedings. All statements are based on documented evidence and personal testimony.